

compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

8. 9:00 AM CASE NUMBER: C23-02746
CASE NAME: RALPH REYES VS. NISSAN NORTH AMERICA, INC.
***HEARING ON MOTION IN RE: ATTORNEYS' FEES AND COSTS**
FILED BY: REYES, RALPH LOUIE
TENTATIVE RULING:

Plaintiff Ralph Reyes sued Defendant Nissan North America, Inc. under the Song-Beverly Act. After almost two years of litigation, the case resolved, with the Defendant agreeing to designate Plaintiff as the prevailing party and to pay the Plaintiff attorneys' fees and costs. Plaintiff now seeks a judicial award of attorneys' fees as costs, after the parties were unable to agree on an amount. The Court received no timely opposition.

Plaintiff has submitted a declaration outlining the work performed and the qualifications of the individuals performing the work, billing statements identified the hours expended, receipts or notations of costs expended, and several prior cases justifying the attorney fee rates requested. Plaintiff seeks his lodestar with a 0.2% multiplier.

The lodestar is \$41,318.50, which comes to \$49,582.20 after the multiplier. Plaintiff also seek \$6,283.30 costs. (There appears to be a mistake in the motion, at one point stating the amount as \$5,111.12. The Court believes the amount sought is the former.) The total amount requested is therefore \$55,865.50.

California Civil Code § 1717(a) authorizes a "prevailing party" to recover an award of reasonable attorney's fees in "any action on a contract" where the contract specifically provides for recovery of attorney's fees. (Cal. Civ. Code § 1717.)

Further, Section 1032(b) states that "a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Cal. Code Civ. Proc. § 1032(b).) California Code of Civil Procedure section 1033.5(a)(10) defines "costs" as attorney's fees when authorized by contract or statute. (Cal. Code Civ. Proc. § 1033.5(a)(10).)

Reasonable attorney's fees in cases, like this one, are generally determined by the "lodestar method." The calculation of hourly rates times the hours expended on the litigation is referred to as the "lodestar" amount, which may be enhanced under certain circumstances. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The Court has reviewed the rates, hours, multiplier, and costs and finds all to be reasonable. Plaintiffs' motion is therefore **granted**.

9. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: RADIAN GENERATION LLC
TENTATIVE RULING:

Cross-Defendants demurred to and moved to strike Cross-Complainants Pristine Sun Corporation and Pristine Sun Fund 5 LLC's First Amended Cross-Complaint. Cross-Complainants have filed no timely opposition to any motion.

After giving months of notice, Cross-Complainants' Attorney was relieved as counsel on March 9, 2026. Notice was given to Cross-Complainants by the Court and by Plaintiff SolaRenewal and Cross-Defendants. They have not provided a substitution of counsel or requested any relief. Cross-Complainants are not permitted to represent themselves. (*Merco Construction Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724; *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141.) This defect, however, is not necessarily fatal at this stage; the preferred practice of courts is to give reasonable opportunity to the corporation to hire legal counsel.

Cross-Defendants have filed Requests for Judicial Notice. Some of the requests involve the contracts at issue in this case. Cross-Defendants are correct that the Court may consider matters subject to judicial notice. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.) That, however, does not mean that contracts that are extraneous to a complaint are subject to judicial notice. The existence of a contract between private parties cannot be established by judicial notice under Evidence Code section 452. (*Gould v. Maryland Sound Industries, Inc.* (Cal. App. 2d Dist. 1995), 31 Cal. App. 4th 1137.) The Requests for Judicial Notice are therefore **denied** as to contracts and agreements, but **granted** as to Secretary of State Documents. The Court is only considering documents that are properly subject to these motions.

Demurrers

Cross-Defendant Radian Generation LLC (Radian) demurs as to the Fifth and Seventh Causes of Action, Cross-Defendants SolaRenewal LLC; New Island Capital Management, Inc. (NICM Inc); New Island Capital 9 Management LLC (NICM LLC); New Island Capital IV LP (NIC IV); and Spring Partners, LLC (Spring Partners) demur as to all causes of action, and Cross-Defendant Grounded Capital, LLC (Grounded Capital) demurs as to the Third, Fourth, Fifth, and Seventh Causes of Action. For the reasons stated briefly below, the demurrers are sustained with leave to amend on all grounds.

Entities

There are two Cross-Complainants. According to the Secretary of State, Pristine Sun Fund 5, LLC (PSF), is a suspended limited liability company. (Fields Decl Ex. 4.) Until PSF returns to good standing, it cannot bring claims. (*Kaufman & Broad Communities v. Performance Plastering, Inc.* (2006) 136 Cal.App.4th 212, 217.) The Court will consider the remaining issues, however, as *Kaufman* emphasizes that upon regaining good standing, previous actions become valid. The other Cross-Complainant is Pristine Sun Corporation (PSC), which was a subcontractor to PSF and had no contract with the Cross-Defendants.

First Cause of Action – Breach of Contract

As the Cross-Complainants were not parties to the contract at issue, do not adequately allege rights under the contract, and fail to allege facts sufficient to support a breach, this claim fails.

Second Cause of Action – Implied Covenant of Good Faith and Fair Dealing

As the Cross-Complainants do not allege facts sufficient to demonstrate the formation of a binding contract or agreement for services or payment, this claim fails.

Third Cause of Action – Breach of Fiduciary Duty

Cross-Complainant PSC was not a member of the SolaRenewal agreement, and therefore no fiduciary duty attaches. PSF has failed to allege any facts other than conclusory statements sufficient to establish a fiduciary duty by Cross-Defendants. Additionally, it fails to explain how the waiver of fiduciary duties is not dispositive. If the actual LLC member expressly owes no fiduciary duty, then non-party supposed affiliated or related entities to that LLC member would not owe fiduciary duties either. This claim therefore fails.

Fourth Cause of Action – Fraudulent Inducement

Cross-Complainants fail to state any of the allegations of fraud with particularity. The allegations fail to demonstrate fraud. This claim therefore fails.

Fifth Cause of Action – Intentional Interference with Prospective Economic Advantage

Cross-Complainants fail to allege the Cross-Defendants' requisite knowledge. Additionally, there is nothing alleged beyond non-cooperation in business dealings. Finally, the allegations do not show that any Cross-Defendant "engaged in conduct that was wrongful by some legal measure other than the fact of interference itself." (*Della Penna v. Toyota Motor Sales, USA*, 11 Cal.4th 376, 393 (1995).) This claim therefore fails.

Sixth Cause of Action – Promissory Estoppel

Cross-Complainants fail to allege promises by Cross-Defendants to cross-complainants that were clear, ambiguous, or actionable, as required. This claim therefore fails.

Seventh Cause of Action – Conspiracy

Civil conspiracy requires: (1) the formation and operation of a conspiracy; (2) wrongful conduct in furtherance of the conspiracy; and (3) damages arising from the wrongful conduct. (*Kidron v. Movie Acquisition Corp.*, 40 Cal.App.4th 1571, 1581 (1995); see *Spencer v. Mowat*, 46 Cal.App.5th 1024, 1036 (2020) ("To establish conspiracy, a plaintiff must allege that the defendant had knowledge of and agreed to both the objective and the course of action that resulted in the injury, that there was a wrongful act committed pursuant to that agreement, and that there was resulting damage").) Cross-Complainants fail to allege a separate, stand-alone tort action, or substantive allegations of conspiracy. This claim therefore fails.

Motions to Strike

Cross-Defendants also move to strike punitive and exemplary damages. These motions are moot, given the ruling on the demurrer. The Court would, however, also **grant** these motions. There are insufficient facts in the First Amended Cross-Complaint to support oppression, fraud, or malice on the part of Cross-Defendants, let alone with particularity. Speculative and conclusory statements of

participation in group conduct does not suffice.

The requests for punitive and exemplary damages are also not specific with respect to the causes of action or facts alleged.

Leave to Amend

Given the above, the Court **sustains** the demurrers. While leave to amend should not be granted where that would not change the result, because of the status of the Cross-Complainants, it is difficult to tell whether competent counsel could rebut the conclusions the Court has come to above. The only reason the Court is granting leave to amend is that there is stated judicial interest in ensuring that the Cross-Complainants have an opportunity to hire counsel and pursue their interests. That interest is not unlimited. Cross-Complainants have 30 days to hire counsel and amend.

10. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
***HEARING ON MOTION IN RE: STRIKE FIRST AMENDED CROSS-COMPLAINT**
FILED BY: SOLARENEWAL LLC
TENTATIVE RULING:

See line 10.

11. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
HEARING ON DEMURRER TO: TO FIRST AMENDED CROSS-COMPLAINT
FILED BY: SOLARENEWAL LLC
TENTATIVE RULING:

See line 10.

12. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
HEARING ON DEMURRER TO: TO FIRST AMENDED CROSS-COMPLAINT
FILED BY: GROUND CAPITAL, LLC
TENTATIVE RULING:

See line 10.

13. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
***HEARING ON MOTION IN RE: TO FIRST AMENDED CROSS-COMPLAINT**
FILED BY: GROUND CAPITAL, LLC
TENTATIVE RULING: